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March 20, 2026

VIA EMAIL AND U.S. CERTIFIED MAIL, RETURN RECEIPT REQUESTED

Diane Farkas, Esq.
General Counsel
Alder Creek Transit District
1200 Alder Creek Way
Rivergate, California 91766
dfarkas@actd.gov

Re: *Reyes / Cho / Mowbray v. Alder Creek Transit District, et al.*

Collision of 10/18/2025 — ACTD Bus #4177 (Owl Route 512 / Block 512-OWL);

Operator R. T. Keeler (Badge #4417)

LITIGATION HOLD AND DEMAND FOR PRESERVATION OF EVIDENCE AND ELECTRONICALLY STORED INFORMATION

Dear Ms. Farkas:

This firm represents Yolanda Reyes, and separately Devin Cho and Alicia Mowbray, in connection with the bus-vs.-pedestrian and passenger-injury collision that occurred on 10/18/2025 at approximately 02:05 a.m. at the intersection of South Main Street and Third Avenue in downtown Rivergate, involving Alder Creek Transit District ("ACTD" or "the District") Bus #4177, operated by Raymond T. Keeler on Owl Route 512. Civil litigation against the District, Mr. Keeler, and Doe defendants is anticipated and, as to the passenger claimants, has already ripened through the presentation of timely government claims that the District has rejected. Reyes's late-claim application under Government Code § 911.4 has not yet been filed.

You are hereby placed on formal notice of the District's duty to preserve — and I demand that the District, its officers, employees, agents, insurers, third-party administrators, adjusters, consultants, vendors, and any other person or entity acting on the District's behalf, immediately implement and enforce a **preservation** hold covering every category of evidence, tangible or intangible, and every item of Electronically Stored Information ("ESI") that is or may be relevant to the collision, the operator, the vehicle, the District's dispatch and safety operations that night, and the District's handling of the resulting claims.

The duty to preserve is triggered by reasonably foreseeable litigation. That threshold is well past. ACTD's own claims file was opened in October 2025; a junior reserve was posted 10/28/2025; a senior reserve was set 12/15/2025 and routed to your office and to outside counsel at Delfino Marek LLP;

passenger tort claims were presented on 01/16/2026 and rejected under Government Code § 913 on 02/18/2026; and a late-claim application on behalf of Ms. Reyes was filed with the Board on 05/15/2026. Preservation is required now, without qualification, and irrespective of ordinary retention or overwrite schedules.

1. Immediate action required — onboard video

Bus #4177 was, on 10/18/2025, equipped with a multi-camera **onboard video** and event-recorder system provisioned through the District's third-party camera vendor. We are informed and believe that the vendor's incident-clip archive operates on a short retention loop and that footage not affirmatively marked, exported, or downloaded is subject to being overwritten in the ordinary course. **The District must, today, take all steps necessary to lock, export, and preserve — in native format with all associated metadata, event-flag data, audio channels, and camera-channel identifiers — the complete footage from every camera aboard Bus #4177 for the entire shift of 10/17/2025 through 10/18/2025**, including pre-trigger and post-trigger buffers, and any pre- and post-event windows the system captures. This obligation extends to still-frame extractions, driver-facing camera footage, forward-facing camera footage, passenger-cabin camera footage, side- and rear-facing camera footage, GPS overlay data, speed and brake telemetry embedded in the video stream, and all vendor-side logs reflecting when the footage was flagged, viewed, downloaded, exported, copied, or shared. If the vendor has already begun a rolling overwrite that jeopardizes any portion of this material, that fact must be documented and disclosed in writing.

2. Categories of evidence and ESI to be preserved

Without limiting the generality of the foregoing, the District's preservation obligation encompasses each of the following categories. This list is illustrative, not exhaustive.

a. Onboard camera / video systems. All footage described in Section 1 above, plus vendor configuration records, camera-health logs, and any prior 30 days of footage from Bus #4177 that bear on system function.

b. Automatic Vehicle Location / GPS telematics. All AVL/GPS position, speed, heading, and time records for Bus #4177 for the shift beginning 10/17/2025 22:00 through the pull-in of the block on 10/18/2025, together with the underlying database exports and any calibration or synchronization logs.

c. Automatic Passenger Counter and farebox data. APC/farebox boarding-and-alighting counts and time-stamped ridership logs for Bus #4177 across the shift, together with the underlying raw exports and any reconciliation reports.

d. Computer-Aided Dispatch (CAD) and dispatch operations records. All CAD dispatch logs, dispatch console screens, dispatch-radio recordings, radio-log entries, on-duty/off-duty timestamps, block assignments, and the run schedule and duty roster in force for Owl service on the night in question.

e. Incident reports — both draft and final. All draft and preliminary on-scene reports (including the on-scene draft prepared by Dispatch Supervisor W. Tran), the final supervisor-reviewed incident report, all supervisor edits, redlines, versions, comments, and metadata; every internal safety investigation file; and every attachment, exhibit, and appendix thereto.

f. Keeler employment, HR, and driving records. Mr. Keeler’s complete personnel file; hire records; qualification and endorsement records; training records; disciplinary history; medical certification (49 CFR Part 391 subpart E); prior post-accident and random test records; drug-and-alcohol testing history; and DMV records obtained through ACTD’s employer pull-notice program.

g. DOT § 655 post-accident testing records. All records of the 49 CFR Part 655 post-accident drug and alcohol testing performed on Mr. Keeler on 10/18/2025, including the screening test, the confirmation test on the evidentiary breath testing device, chain-of-custody forms, BAT credentials, calibration and quality-assurance records for the instrument used, and the MRO / TPA file.

h. Fleet maintenance and inspection records for Bus #4177. All maintenance, inspection, repair, defect, and out-of-service records; daily vehicle inspection reports (“pre-trips”) for the applicable shift and the 24 months preceding the collision; brake and steering inspection records; ECM/engine-control-module data downloads; and all vendor work orders.

i. Physical bus and recovered parts. Bus #4177 itself and every mechanical, electrical, or bodywork component that has been, or may be, removed from it in connection with the collision. The bus is not to be repaired, refurbished, repainted, reassigned, sold, salvaged, or scrapped without at least thirty (30) days’ prior written notice to this office and a reasonable inspection opportunity for our engineering and reconstruction experts. All parts recovered from the scene or from the vehicle post-collision must be preserved, labeled, and stored under chain-of-custody conditions.

j. Scene evidence. All photographs, videos, measurements, sketches, drone imagery, 3D scans, and physical evidence from the collision scene, whether generated by ACTD, its consultants, Rivergate PD, or any other party in the District’s custody or control.

k. Witness statements. All statements, recorded interviews, canvass notes, and adjuster contact logs from every witness — including passengers Devin Cho, Alicia Mowbray, and Terrence Blau, any other passengers or bystanders, first responders, ACTD dispatch and supervisory personnel, and Mr. Keeler himself.

l. Claims files and reserve memoranda. The complete internal claims file(s) opened by the District’s Risk & Claims department, including but not limited to the initial junior-adjuster reserve note and the senior reserve memorandum routed to your office and cc’d to outside counsel; all subsequent reserve adjustments; all coverage analyses; all correspondence with the Southern California Public-Entity Risk Alliance (SCPERA) or any other excess carrier or risk-sharing pool; and all payment ledgers.

m. Communications about the incident — in every medium, on every device. All emails, calendar entries, chat and instant messages (Teams, Slack, or otherwise), SMS/MMS text messages, voicemails, transcribed voicemails, memoranda, notes, and handwritten materials of every person with knowledge, whether created on District-issued equipment or on **personal devices**. This obligation expressly reaches communications sent or received on the *personal* cellular telephones, tablets, laptops, and personal email accounts of District officers, employees, and agents — including, without limitation, any and all SMS, iMessage, WhatsApp, Signal, or other messaging-application content on the personal cell phone of Dispatch Supervisor Wesley

Tran concerning the collision, the operator's assignment, the assigned route, the block, dispatch conversations that morning, or the District's response to the incident. Ephemeral-messaging features (disappearing messages, auto-delete timers, view-once media) must be disabled with respect to any responsive content, and any content already subject to such features must be affirmatively exported and preserved.

n. Third-party subpoenas, requests, and productions. All subpoenas, public-records requests, discovery demands, and informal information requests received by the District or its counsel from any source concerning the collision, together with the District's responses and productions.

o. Related metadata and system logs. For every ESI category above, all system, application, and vendor-side logs reflecting creation, modification, access, download, export, transmission, or deletion of the responsive material, and all backup media (including tape, cloud snapshots, disaster-recovery images, and journaling backups) reflecting the responsive material as it existed at any point after 10/18/2025.

3. Form and manner of preservation

All ESI is to be preserved in native format with metadata intact. Auto-delete rules, retention-cycle purges, mailbox size-limit auto-archiving, litigation-unaware "clean-up" scripts, and any similar routine processes must be suspended as to responsive material. The District should immediately issue a written litigation-hold notice to each custodian identified above (and to any others reasonably likely to have responsive material) and should collect written acknowledgments. If any responsive material has already been lost, altered, or overwritten — whether by vendor overwrite of onboard video, by routine email or messaging purges, by device wipes, by trade-ins of District-issued or personal devices, or otherwise — that fact must be identified and disclosed to this office in writing without delay.

4. Consequences of failure to preserve — spoliation

Please be advised that the destruction, loss, alteration, concealment, or overwrite of any of the foregoing evidence or ESI, whether intentional or through the failure to suspend routine deletion, will constitute **spoliation** of evidence. We will not hesitate to seek the full range of spoliation remedies available under California law, including without limitation evidentiary and issue sanctions under Code of Civil Procedure §§ 2023.010 and 2023.030; adverse-inference instructions under Evidence Code § 413 and *Cedars-Sinai Medical Center v. Superior Court* (1998) 18 Cal.4th 1; monetary sanctions; and, where warranted, terminating sanctions and referrals to the State Bar for any counsel found to have participated in or countenanced the loss of evidence. The obligation is affirmative and non-delegable; retention of an outside vendor to host onboard video, telematics, or CAD data does not diminish the District's duty to preserve.

5. Confirmation requested

Please confirm in writing, not later than **04/03/2026**, that (a) a written litigation hold has been issued to all reasonably identified custodians; (b) the complete onboard video from Bus #4177 for the shift of 10/17–10/18/2025 has been locked, exported from the vendor's incident-clip archive, and preserved in native format; (c) the physical bus and all recovered parts have been sequestered and will not be released, repaired, or returned to service without prior notice to this office; and (d) auto-delete, retention-cycle, and ephemeral-messaging features have been suspended as to responsive material on both District systems and the personal devices of the identified custodians.

Nothing in this letter is intended to limit any other legal or ethical duty owed by the District, its counsel, or its agents. This is a demand for preservation only; formal discovery will follow in due course.

Please direct all further correspondence on this subject to me at the address and email above.

Very truly yours,

HALSTEAD & CRUZ LLP

/s/ Nora Halstead

Nora Halstead

California SBN 369314

Partner

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cc: Marisol Vega, Esq. — Delfino Marek LLP, 515 South Flower Street, 38th Floor, Los Angeles, CA 90071
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